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Case Number: 25STCV03769 Hearing Date: August 5, 2026 Dept: 224

Reyes v. Strategic Legacy Management Corp. et al.,

Below, the Court posts two tentative rulings.

1. APPLICATION FOR NOTICE BY PUBLICATION

TENTATIVE RULING

Plaintiff's motion to serve Defendant Strategic Legacy by publication is DENIED W/OUT PREJUDICE.

ANALYSIS

Legal Standard

If service of a summons by other means proves impossible, service may be effected by publication, upon the trial court's approval. (*Watts v. Crawford* (1995) 10 Cal.4th 743, 748–749 & fn. 5 (*Watts*).) Code of Civil Procedure (CCP) section 415.50 provides for service by publication “if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: [¶] (1) [a] cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action [or] [¶] (2) [t]he party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property.” (CCP § 415.50, subd. (a).)

The plaintiff must establish reasonable diligence via the testimony of an individual with personal knowledge of the efforts to serve the defendant. (*Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 42; *Donel, Inc. v. Badalian* (1978) 87 Cal.App.3d 327, 333 [“the question is simply whether [plaintiff] took those steps which a reasonable person who truly desired to give notice would have taken under the circumstances”].) “The term ‘reasonable diligence’ denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives,...and by investigation of appropriate city and telephone directories, [voter registries, and assessor's office property indices situated near the defendant's last known location], generally are sufficient. These are the likely sources of information, and consequently must be searched before resorting to service by publication. Before allowing a plaintiff to resort to service by publication, the courts necessarily require him to show exhaustive attempts to locate the defendant, for it is generally recognized that service by publication rarely results in actual notice.” (*Watts*, supra, 74310 Cal.4th at p. 749, fn. 5 [internal citations omitted].)

Discussion

Plaintiff seeks to serve Strategic Legacy Management Corp. ("Strategic Legacy") by publication in the Los Angeles Daily Journal, a newspaper of general circulation in Los Angeles County.

In support of the motion, Plaintiff submits: (1) the declaration of Plaintiff's counsel Onica V. Cole (Cole Decl.) and (2) Defendant's registered address with the California Secretary of State (Exh. A).

CCP § 415.50, subd. (a), requires the moving party to show by affidavit that "[a] cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action." (CCP § 415.50, subd. (a).) Verified pleadings, standing alone, are insufficient to satisfy this jurisdictional requirement; the existence of a cause of action must be proved by an affidavit containing a statement of facts constituting legal evidence with a tendency to prove the existence of a cause of action against the defendant to be served. (Olvera, supra, 232 Cal.App.3d at p. 42, fn. 9.) Here, Plaintiff's counsel declaration does not set forth that a cause of action exists against the Defendant. Therefore, the Court finds that Plaintiff has not satisfied this requirement pursuant to CCP § 415.50, subd. (a). (Application, Cole Decl.)

Turning to reasonable diligence, Plaintiff's counsel obtained Defendant's last known address from the California Secretary of State. Defendant's last known address is 221 E. 12th St., Los Angeles, CA. Plaintiff's counsel states that a process server attempted and failed to personally serve the Defendant at this address because they no longer have offices at this location. Plaintiff provides no corroboration about said attempts, such as a declaration of diligence from the process server. As a result, the Court finds that Plaintiff has not established a sufficient showing of reasonable diligence. (Application, Exh. A, Cole. Decl.)

Finally, Plaintiff requests publication in the Los Angeles Daily Journal on the grounds that it is most likely to give notice to Defendant because "the newspaper covers the area of Defendant's last known residence..." (Application) Defendant's last known address is located in Los Angeles County, and Los Angeles Daily Journal is circulated in said county. Thus, the Court agrees that this newspaper is likely to give Defendant actual notice. (Application)

Conclusion

The applicant must demonstrate that service cannot reasonably be accomplished by any of the methods specified in CCP § 415.10 through 415.40. Here, the application explains why personal service, substituted service, or service by mail could not be accomplished. However, Plaintiff's counsel fails to provide evidence regarding the attempts to serve the Defendant. The Court cannot make a decision on the incomplete information provided by Plaintiff. Thus, The Court finds that Plaintiff has not made a sufficient showing of reasonable diligence as required by CCP § 415.50. Plaintiff also failed to establish, by affidavit, the existence of a cause of action against the Defendant to be served as required by CCP § 415.50, subd. (a). Plaintiff explains why the Los Angeles Daily Journal, a county circulated newspaper, is most likely to give Defendant actual notice as required by CCP § 415.50, subd. (b).

Based on the foregoing, Plaintiff's motion to serve Defendant Strategic Legacy by publication is DENIED without PREJUDICE.

2. PLAINTIFF'S MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING

Plaintiff's Motion for Summary Adjudication of the First Cause of Action is DENIED.

ANALYSIS

Introduction

On February 11, 2025, Plaintiff Angelica Reyes filed the Complaint in this action against Defendants Strategic Legacy Management Corp., Jose Lopez, and Patricia Lopez, arising out of her tenancy at 233 West 42nd Street, Los Angeles. The First Cause of Action alleges violation of the Los Angeles Rent Stabilization Ordinance (unregistered unit).

On October 28, 2025, the Court heard and denied Plaintiff's Motion for Summary Adjudication of the First Cause of Action, on the grounds that the Motion was procedurally defective.

On April 6, 2026, Plaintiff filed another Motion for Summary Adjudication of the First Cause of Action, originally noticed for hearing on July 9, 2026.

On April 14, 2026, Plaintiff filed the instant Motion for Summary Adjudication of the First Cause of Action, noticed for hearing on July 16, 2026.

No opposition has been filed.

MOTION FOR SUMMARY ADJUDICATION

Plaintiff Angelica Reyes moves for summary adjudication of the First Cause of Action for violation of the RSO (unregistered unit), Los Angeles Municipal Code ("LAMC") sections 151.05(A) and 151.10(A).

As an initial matter, the Court notes that two identical Motions for Summary Adjudication have been filed by Plaintiff, with separate reservation numbers. The first was filed April 6, 2026 and originally reserved for hearing on July 9, 2026 (Reservation No. 607220223287). The instant motion was filed April 14, 2026 and reserved for hearing on July 16, 2026 (Reservation No. 060627727227). The two motions are the same in substance and rest on the same memorandum of points and authorities, the same Declaration of Angelica Reyes, and the same Exhibits 101 through 106. The Court addresses only the motion reserved for hearing on July 16, 2026 (Reservation No. 060627727227) and takes the other motion off calendar as moot.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843). In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). Thus, summary judgment or summary adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741).

As to each claim as framed by the complaint, the party moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to negate an essential element. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520). Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389).

A motion for summary judgment or summary adjudication must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition or where the opposition is weak. (See *Leyva v. Superior Court* (1985) 164 Cal.App.3d 462, 475; *Salesguevara v. Wyeth Labs., Inc.* (1990) 222 Cal.App.3d 379, 384, 387.)

Once the moving party has met the burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (CCP § 437c(o)(2)). When a party cannot establish an essential element or defense, a court must grant a motion for summary adjudication. (CCP § 437c(o)(1)-(2)).

A moving plaintiff meets his or her burden of showing that there is no defense to a cause of action "if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (CCP § 437c(p)(1).)

First Cause of Action: Violation of LAMC §§ 151.05(A) and 151.10(A)

LAMC section 151.05(A) provides in relevant part that "no landlord shall demand or accept rent for a rental unit without first serving a copy of a valid [rental unit] registration or annual [rental unit] registration renewal statement on the tenant of that rental unit." LAMC section 151.11(B) permits a tenant to withhold rent otherwise lawfully due and owing where the landlord has failed to comply with section 151.05(A). Once the landlord complies, the tenant becomes obligated to pay current rent and any back rent withheld. (*Lyles v. Sangadeo-Patel* (2014) 225 Cal.App.4th 759, 765-766.)

LAMC section 151.10(A) supplies the damages remedy. It provides that any person who demands, accepts, or retains any payment of rent in excess of the maximum rent or maximum adjusted rent in violation of the chapter is liable in a civil action for three times the amount by which the payments exceed the maximum rent or maximum adjusted rent, together with reasonable attorney's fees and costs as determined by the court.

Plaintiff moves for summary adjudication on the grounds that (1) the unit was unregistered throughout the limitations period, (2) no registration or annual renewal statement was ever served on her, (3) Defendants nevertheless demanded and accepted approximately \$52,879.00 in rent between February 2022 and February 2024, and (4) \$5,931.56 of that amount constituted rent in excess of the maximum lawful rent, entitling her to treble damages of \$17,794.68, restitution, and fees.

Plaintiff provides the following evidence in support. Plaintiff testifies that she has resided at the property since 2007, that the unit is subject to the RSO, that she paid approximately \$52,879.00 in rent between February 2022 and February 2024, that she was never served with a registration or annual renewal statement in 2021, 2022, 2023, or 2024, that no such notice was posted at the premises, and that she first observed a registration statement only after May 30, 2025. (Reyes Decl., ¶¶ 2-10.) Plaintiff further relies on the 2025 Statement of Registration issued by LAHD (Exh. 104), an LAHD declaration regarding the property's registration status (Exh. 105), Defendants' Answer (Exh. 103), and an LAHD rent investigation, letter, and ledger (Exh. 106).

Evidence of Excess Rent

Plaintiff asserts that LAHD "conclusively determined" \$5,931.56 in overcharges during 2022 to 2024, consisting of \$34.72 for 2022, \$5,518.72 for 2023, and \$378.12 for 2024. (Exh. 106.)

The \$5,931.56 figure does not appear in Exhibit 106. It is the sum of three annual entries on the "Total Overpaid by Year" line of the enclosed ledger. The ledger tracks the difference between legal rent plus SCEP fee and amounts actually paid, month by month, from 2016 through February 2024. It reflects both positive and negative entries. The ledger's bottom line is "Total

Rent Reimbursement Due \$2,316.72," and the accompanying letter states that "the maximum amount owed by the tenant between January 2020 and February 2024 is \$2316.72." (Exh. 106.) On its face, Exhibit 106 does not conclusively establish \$5,931.56 in recoverable excess rent. At most it raises questions requiring resolution by a trier of fact.

Plaintiff asks the Court to adjudicate the First Cause of Action, establish Defendants' liability and her entitlement to statutory remedies, and defer the amount of further overcharges to trial or post-judgment proceedings.

Plaintiff contends that "the precise calculation of any such further unlawful amounts can be addressed at trial or in post-judgment proceedings; it does not create a triable issue as to Defendants' liability." However, Plaintiff fails to cite to, nor is the Court aware of, any legal authority supporting that proposition. Section 437c(f)(1) permits summary adjudication of a cause of action, an affirmative defense, a claim for punitive damages as specified in Civil Code section 3294, or an issue of duty, and only where the motion completely disposes of that cause of action, defense, claim, or issue. Summary adjudication cannot be granted in favor of a plaintiff on liability alone, with damages left for later determination, as damages are an element of the cause of action. (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 238, 242-243.)

A plaintiff moving for summary adjudication must therefore establish the amount of damages as a matter of law. (*Id.* at p. 243.)

Plaintiff has not done so. She concedes that amounts beyond the ledger period remain to be proven, and the ledger itself does not establish the excess rent she claims.

Plaintiff has not met her initial burden of proving each element of the First Cause of Action. The evidence she submits does not establish that Defendants demanded, accepted, or retained rent in excess of the maximum lawful rent in the amount claimed. The relief she seeks would not completely dispose of the cause of action in any event. Further, Plaintiff's supporting exhibits appear to be unauthenticated.

The burden therefore does not shift to Defendants to show that a triable issue of material fact exists, although Defendants fail to oppose the motion. (CCP § 437c(p)(1).) The motion must be denied even in the absence of opposition, because Plaintiff's evidence does not prove all material facts. (*Leyva*, supra, 164 Cal.App.3d at p. 475; *Salasguevara*, supra, 222 Cal.App.3d at pp. 384, 387.)

Conclusion

Based on the foregoing, Plaintiff's Motion for Summary Adjudication of the First Cause of Action is DENIED.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.